

26SMCV00604 26SMCV00604

County: los-angeles

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Case Number: 26SMCV00604 Hearing Date: July 14, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

PHYLLIS REDFERN,

Plaintiff,

v.

JOHN REDFERN,

Defendant.

Case No.:

26SMCV00604

Hearing Date: July 14, 2026

[TENTATIVE]

order RE:

DEFENDANT's MOTION FOR STAY OF PROCEEDINGS

PENDING RESOLUTION of RELATED CIVIL ACTION

BACKGROUND

This is an unlawful detainer case. Plaintiff Phyllis Redfern ("Plaintiff") alleges that Defendant John Redfern ("John Redfern") agreed to rent premises as a month-to-month tenancy for \$5,000 a month starting on March 1, 2018. (Compl., ¶ 6.) Defendant was served 3-day notice to pay rent or quit. (Id. at ¶ 9.)

On January 27, 2026, Plaintiff filed a Complaint for unlawful detainer.

On June 1, 2026, Defendant filed this Motion for Stay of Proceedings Pending Resolution of Related Civil Action. On June 1, 2026, Defendant filed a Supplemental Declaration of John Redfern re Inadvertently Omitted Exhibit D.

On June 18, 2026, Defendant filed an Amended Motion for Stay of Proceedings Pending Resolution of Related Civil Action.

On June 30, 2026, Plaintiff filed an opposition.

On July 2, 2026, Defendant filed a reply.

On July 6, 2026, Defendant filed a corrected reply.

LEGAL

STANDARD

Code of Civil Procedure § 128 empowers this Court "to enforce order in the proceedings before it" and "to own and control its process and orders so as to make them conform to law and justice." (Code Civ. Proc., § 128(a)). "[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice . . . the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its

docket with economy of time and effort for itself, for counsel, and for litigants.” (OTO, L.L.C. v. Kho (2019) 8 Cal. 5th 111, 141 [citing People v. Bell (1984) 159 Cal.App.3d 323, 329; and Landis v. North American Co. (1936) 299 U.S. 248, 254].)

DISCUSSION

A. Request

for Stay Pending Resolution of Another Civil Case

Defendant moves for a stay of proceedings in the unlawful detainer case pending resolution of another civil case. The civil action, Redfern v. Redfern, Case No. 25SMCV05441, is pending in Santa Monica and asserts claims for fraud, promissory fraud, promissory estoppel, common counts, and declaratory relief.

Defendant argues the proceeding should be stayed because the two civil actions involve identical parties, the same property, and overlapping threshold issues which could result in inconsistent rulings. Defendant contends that the results cannot be reconciled if this Court were to find the tenant in default and the other action were to find that Defendant was a defrauded beneficial owner. Defendant requests the court stay proceedings while Defendant pursues his equitable defenses in another civil court. Defendant also argues a stay is warranted because the unlawful detainer action is based on void notice and manufactured default. Defendant contends that the retaliation presumption has been triggered because the eviction action was filed within 180 days of the tenant's exercise of protected rights. Finally, Defendant argues he will suffer irreparable harm absent a stay because he will lose possession of the property underlying the other civil action and Plaintiff will suffer no harm.

In opposition, Plaintiff

argues that Defendant has not met his burden to establish grounds for a discretionary stay. Plaintiff argues that Defendant does not seek a stay based on newly discovered procedural emergency but merely because he has filed a separate civil action. The records only reflect that another action exists involving the same parties and property. Moreover, Defendant improperly attempts to shift the focus from the stay to the disputed merits of his affirmative defenses and civil claims. Moreover, Defendant's characterization of discovery as admissions is irrelevant and only identifies factual disputes

to be litigated. A judgment in this unlawful detainer would determine possession, but it would not finally adjudicate issues of fraud, trust, title, or damages in the separate civil action. Additionally, Defendant fails to establish irreparable harm. If Defendant's claimed harm of losing possession were a basis for a stay, it would defeat the summary nature of unlawful detainer proceedings simply by filing a complaint and alleging equitable claims. Also, Plaintiff will be prejudiced by a stay because Plaintiff filed this action to recover possession and unpaid rent. A stay would allow Defendant to stay in possession and delay trial, a result contrary to Legislative intent. Finally, Defendant's motion improperly attempts to convert a stay request into a dispositive challenge to the Complaint on the issue of Notice.

Defendant incorrectly

relies on *Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208. There, the Court discussed when an action is brought in a court of this state involving the same parties and the same subject matter as an action already pending in a court of another jurisdiction. (*Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.) Here, both civil actions are brought in courts of the same jurisdiction of Los Angeles County. (See *Mobil Oil Corp. v. Superior Ct.* (1978) 79 Cal.App.3d 486, 492 ["There is but one superior court in the county of Los Angeles, and all actions brought in that county are within the same jurisdiction."])

In

Mobil Oil Corp. v. Superior Ct. (1978) 79

Cal.App.3d 486, the Court explains that when there are two actions pending in the same superior court in the same county, the issue has to do with pleading and trial practice. (*Id.* at p. 493.) "Whatever difficulties or confusion two pending actions in different districts of the same superior court may present as to the court's internal management of its calendar, they could hardly justify the use of the drastic remedy of a stay of one of the actions." (*Ibid.*) Moreover, unlawful detainer statutes were enacted to provide an adequate, expeditious, and summary procedure for regaining possession of real property wrongfully withheld by a tenant. (*Id.* at p. 494.) While there is trial setting preference for declaratory relief actions, it is not absolute. (*Ibid.*) A stay of an unlawful detainer action based upon the ground that one of the causes of action in the additional civil action is for declaratory relief would ignore the Legislature and treat the cause of action for declaratory relief as an absolute priority for trial. (*Id.* at pp. 494–95.) There, the Court concluded that trial court's order staying the

unlawful detainer action constituted an abuse of discretion. (Id. at p. 495.)

Similarly,

here, the separate cause of action seeks declaratory relief. The Court agrees with Plaintiff that a stay of proceedings would frustrate the purpose of the unlawful detainer action to afford expeditious and adequate remedy. (See *Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 853 [explaining that the reason for the rule that unlawful detainer actions are not to be tried in conjunction with other causes or claims is that, otherwise, the very purpose of this statutory, summary procedure, to afford an expeditious and adequate remedy for obtaining possession of premises wrongfully withheld by tenants, would be entirely frustrated].) That Defendant has established that there are two civil actions involving the same parties and the same property does not justify a stay of proceedings that would go against the right to expeditious litigation in unlawful detainer cases. Nor has Defendant shown any true risk of inconsistent judgments. Defendant has merely concluded that there could be inconsistent rulings because both matters have to do with Defendant's interest in the property. Defendant has not demonstrated any evidence that a judgment in this unlawful detainer action would adjudicate the issues of fraud, trust, title, etc.

Moreover, the Court agrees that Plaintiff would be prejudiced by a stay where Defendant has not paid rent and would continue to remain in possession of property. Granting a stay here would be in contravention of the purpose of unlawful detainer actions. (See id. at p. 843 ["The lessee ought not to have the right to refuse to pay the disputed rent, file and serve an action for declaratory relief and thereby prevent the lessor from employing the summary remedies to which he is entitled under the unlawful detainer statutes (Code Civ. Proc., § 1161 et seq.). If such were the rule, it would be within the power of the lessee to render nugatory the statutorily prescribed unlawful detainer procedures."])

Finally, the Court agrees with Plaintiff that Defendant improperly attempts to argue as to the merits of affirmative defenses and civil claims in his motion. The Court will not address the argument as to the Three-Day Notice because it does not support the motion for stay and is a disputed defense to be litigated.

Accordingly, the motion is denied.

B. Request
for Continuation of Trial

In reply, Defendant
narrows his request to seek a 30-to-45-day continuance of the July 27, 2026
trial date to allow the July 15, 2026 deposition of Plaintiff to be completed
and deposition testimony to inform the parties' positions before trial.

Courts will generally
not consider arguments raised for the first time in a reply brief. (See City
of Corona v. Naulls (2008) 166 Cal.App.4th 418, 425.) Because Defendant's
reply raises a new argument and changes his request from a request for stay of
proceedings pending final resolution to a request to continue the trial date,
the Court will not consider Defendant's request for a trial continuance made in
his reply.

CONCLUSION

For the foregoing reasons, the Court DENIES Defendant
John Redfern's Motion for Stay of Proceedings Pending Resolution of Related
Civil Action.

DATED: July 14, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court